

CHAPTER 3.

An Act to provide, during Twelve Months, for the Discipline and Regulation of the Army.

[30th April 1909.]

WHEREAS the raising or keeping of a standing army within the United Kingdom of Great Britain and Ireland is time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of forces should be continued for the safety of the United Kingdom and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should consist of one hundred and eighty-three thousand two hundred, including those to be employed at the depôts in the United Kingdom of Great Britain and Ireland for the training of recruits for service at home and abroad, but exclusive of the numbers actually serving within His Majesty's Indian possessions :

And whereas it is also judged necessary for the safety of the United Kingdom, and the defence of the possessions of this realm, that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service, under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within this realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm ; yet, nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law, in their duty, that an exact discipline be observed, and that persons belonging to the said forces who mutiny or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow :

And whereas the Army Act will expire in the year one thousand nine hundred and nine on the following days :—

44 & 45 Vict.
c. 58.

(a) In the United Kingdom, the Channel Islands, and the Isle of Man, on the thirtieth day of April ; and

(b) Elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of July :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Short title.

1. This Act may be cited as the Army (Annual) Act, 1909.

Army Act to be in force for specified times.

2.—(1) The Army Act shall be and remain in force during the periods herein-after mentioned, and no longer, unless otherwise provided by Parliament (that is to say) :—

(a) Within the United Kingdom, the Channel Islands, and the Isle of Man, from the thirtieth day of April one thousand nine hundred and nine to the thirtieth day of April one thousand nine hundred and ten, both inclusive ; and

(b) Elsewhere, whether within or without His Majesty's dominions, from the thirty-first day of July one thousand nine hundred and nine to the thirty-first day of July one thousand nine hundred and ten, both inclusive.

(2) The Army Act, while in force, shall apply to persons subject to military law, whether within or without His Majesty's dominions.

(3) A person subject to military law shall not be exempted from the provisions of the Army Act by reason only that the number of the forces for the time being in the service of His Majesty, exclusive of the marine forces, is either greater or less than the number herein-before mentioned.

Prices in respect of billeting.

3. There shall be paid to the keeper of a victualling house for the accommodation provided by him in pursuance of the Army Act the prices specified in the First Schedule to this Act.

AMENDMENTS OF ARMY ACT.

Transfer of powers to Army Council.

4. There shall be transferred to the Army Council—

(a) All powers and duties conferred or imposed on a Secretary of State under the provisions of the Army Act specified in Part I. of the Second Schedule to this Act ; and

(b) All powers and duties conferred or imposed on the Commander-in-Chief and the Adjutant-General under the Army Act :

and accordingly the modifications set out in Part II. of that Schedule shall be made in the Army Act :

Provided that—

(1) Nothing in this section shall affect the validity of any rules, regulations, orders, or other documents made or executed by a Secretary of State under any of the powers hereby transferred ; but all such rules,

regulations, orders, and documents shall until revoked by the Army Council have effect as if made or executed by the Army Council ; and

- (2) The powers and duties transferred to the Army Council by this section shall, as from the commencement of this Act, be deemed to be business within the meaning of the Order in Council dated the tenth day of August nineteen hundred and four, regulating the distribution of business amongst the members of the Army Council. The Secretary of State may, however, reserve to himself any part of such business ; and

- (3) Nothing in this section shall affect the responsibility of the Secretary of State to His Majesty and to Parliament.

5.—(1) In subsection (2) of section one hundred and fifteen of the Army Act (which relates to the supply of carriages and vessels in cases of emergency), after the words “carriages “ of every description ” there shall be inserted the words “ (including motor cars and other locomotives, whether for the “ purpose of carriage or haulage).”

(2) At the end of the same section the following subsection shall be added :—

“(9) The Army Council may, by regulations under the Territorial and Reserve Forces Act, 1907, assign to county associations established under that Act the duty of furnishing, in accordance with the directions of the Army Council, such carriages, animals, and vessels as may be required on mobilisation for the regular or auxiliary forces, or any part thereof, and where such regulations are made an officer of a county association shall have the same powers as are by this section conferred on an officer of the Army Council.”

6. In subsection (6) of section one hundred and twenty-two of the Army Act (which defines “qualified officer” in relation to convening and confirming the findings and sentences of general courts-martial), for the words “on whom the command of any “ body of regular forces may be conferred” there shall be substituted the words “on whom the command of any part of “ His Majesty’s forces may be conferred.”

Amendment of
44 & 45 Vict.
c. 58, s. 122 (6).

7. The following section shall be inserted in the Army Act after section one hundred and eight :—

108A.—(1) Where directions have been given for embodying all or any part of the Territorial Force, His Majesty by Order distinctly stating that a case of emergency exists, and signified by a Secretary of State, and also in Ireland the Lord Lieutenant by a like Order, signified by the Chief Secretary or Under-Secretary, may authorise any general or field officer commanding His Majesty’s regular forces in any military district or place in the United Kingdom to issue a billeting requisition under this section.

Billeting in
cases of
emergency.

(2) Any officer so authorised may issue a billeting requisition under his hand reciting the said Order and requiring chief officers of police to provide billets in such places and for such number of officers and soldiers, and their horses, and for such period, as may be specified in the requisition.

(3) The provisions of this Act as to billeting shall apply to billeting under such a requisition as if for references therein to a route there were substituted references to such a requisition, subject, however, to the following modifications:—

(a) The occupiers of all public buildings, dwelling-houses, warehouses, barns, and stables shall, as well as the keepers of victualling houses, be liable to billets, and the said provisions shall apply as if references to victualling houses and the keepers of victualling houses included references to such public buildings, dwelling-houses, warehouses, barns, and stables, and the occupiers thereof:

(b) The powers and duties conferred or imposed on constables shall be exercised and performed by the chief officers of police, and accordingly for references to constables in the said provisions there shall be substituted references to the chief officers of police, and for the reference to a justice of the peace in subsection (7) of section one hundred and eight there shall be substituted a reference to a court of summary jurisdiction, but a chief officer of police, in selecting the persons required to provide billets, and in determining the number of officers and soldiers to be billeted on any person, shall, so far as practicable, have regard to the convenience of the several occupiers, and shall act in accordance with any general instructions which may have been issued by the police authority:

(c) The prices to be paid to an occupier other than the keeper of a victualling house for accommodation furnished and food and fodder supplied by him shall be such as may be fixed by regulations made by the Army Council with the consent of the Treasury:

(d) Subsection (2) of section one hundred and three (which defines a route), paragraph (6) of section one hundred and eight (which relates to the power of a justice to vary a route), and paragraph (2) of Part II. of the Second Schedule to the Army Act (which requires billets to be made out to the less distant victualling houses) shall not apply.

(4) Any regulations as to prices so made shall be laid before each House of Parliament as soon as may be after they are made, and, if within forty days after they have been so laid either House presents an address to His Majesty praying that any such regulations may be annulled, His Majesty may thereupon by Order in Council annul the same, and the regulations so annulled

shall thenceforth become void without prejudice to anything done thereunder in the meantime.

(5) For the purposes of this section—

The expression “public building” includes any building wholly or partially provided or maintained out of the rates, and any building to which the public habitually have access, whether on payment or otherwise;

The expression “chief officer of police”

(a) As respects the City of London, means the Commissioner of City Police, and elsewhere in England has the same meaning as in the Police Act, 1890;

53 & 54 Vict.
c. 45.

(b) In Scotland has the same meaning as in the Police (Scotland) Act, 1890;

53 & 54 Vict.
c. 67.

(c) As respects the police district of Dublin metropolis, means the Chief Commissioner of Police for that district, and elsewhere means a county inspector of the Royal Irish Constabulary.

In the case of unoccupied premises this section shall apply as if the owner were the occupier thereof.

(6) Compensation shall be paid by the Army Council out of money voted by Parliament for Army services in respect of any damage caused by any officer or soldier billeted under this section to the premises in which he is billeted, and the amount of such compensation shall in the event of disagreement be determined—

(a) In England by arbitration under the Arbitration Act, 1889;

52 & 53 Vict.
c. 49.

(b) In Scotland in the same manner as a question of disputed compensation under subsection (10) of section twenty-five of the Local Government (Scotland) Act, 1894;

57 & 58 Vict.
c. 58.

(c) In Ireland by arbitration under the Common Law Procedure Amendment Act (Ireland), 1856, as amended by any subsequent enactment.

19 & 20 Vict.
c. 102.

8.—(1) At the end of paragraph (10) of section one hundred and seventy-five of the Army Act (which relates to persons subject to military law as officers) there shall be added the following paragraph:—

Amendment of
44 & 45 Vict.
c. 58. ss. 175,
176, and 177,
as to persons
subject to
military law.

“(11) All officers belonging to a force raised in India or a colony, when attached to or doing duty with any portion of the regular, reserve, or auxiliary forces in the United Kingdom.”

(2) In section one hundred and seventy-six of the Army Act (which relates to persons subject to military law as soldiers) the following paragraph shall be inserted after the proviso to paragraph (8):—

“(8A) All non-commissioned officers and men belonging to a force raised in India or a colony when attached to or otherwise acting as part of or with any portion of the regular, reserve, or auxiliary forces in the United Kingdom.”

(3) At the end of section one hundred and seventy-seven of the Army Act (which relates to persons belonging to Indian and Colonial forces) the following paragraph shall be added:—

“This section shall not apply to any officer belonging to any such force when attached to or doing duty with, or to any

non-commissioned officer or man belonging to any such force when attached to or otherwise acting as part of or with, any portion of the regular, reserve, or auxiliary forces in the United Kingdom."

Amendment of 44 & 45 Vict. c. 58, s. 177, as to persons belonging to Indian and Colonial forces.

9.—(1) In section one hundred and seventy-seven of the Army Act (which relates to persons belonging to Indian and Colonial forces), after the words "whether within or without the limits of India or the colony," there shall be inserted the words, "and any such law may apply to any such officers, non-commissioned officers, and men, all or any of the provisions of this Act so far as they relate to the regular forces or any of the auxiliary forces, as the case may require, subject to such adaptations as may be necessary to make them applicable, and the provisions of this Act so applied shall, subject to such adaptations as aforesaid, be construed as if such officers, non-commissioned officers, and men were included in the expression 'the regular forces' or 'the auxiliary forces,' as the case may require."

(2) In the same section for the words "respectively mentioned in the two preceding sections of this Act" there shall be substituted the words "of the regular forces."

Application of Army Act to men of the reserve forces.

10.—(1) Section one hundred and seventy-eight of the Army Act (which applies the Army Act to the auxiliary forces when subject to military law) shall extend to non-commissioned officers and men of the reserve forces when subject to military law otherwise than when called out on permanent service, and accordingly in that section, after the words "in pursuance of this Act," there shall be inserted the words "and when non-commissioned officers and men belonging to the reserve forces are subject to military law in pursuance of this Act, otherwise than when called out on permanent service," and after the words "men belonging to such auxiliary," there shall be inserted the words "or reserve."

(2) In subsection (8) of section one hundred and ninety of the Army Act (which defines the expression "regular forces"), after the word "world" there shall be inserted the words "including soldiers of the reserve forces when called out on permanent service and," and the words "and subject to this qualification, that when the reserve forces are subject to military law such forces become during the period of their being so subject part of the regular forces" shall be repealed.

(3) In paragraph (b) of subsection (1) of section thirteen of the Army Act (which relates to fraudulent enlistment), the words "not subject to military law" shall be repealed.

Amendment of 44 & 45 Vict. c. 58, s. 190, as to definition of the expression "Governor."

11. In paragraph (27) of section one hundred and ninety of the Army Act (which defines the expression "Governor"), after the words "in its application to a colony" there shall be inserted the words "means the Governor-General, Governor, High Commissioner or Commissioner, and".

SCHEDULES.

FIRST SCHEDULE.

Section 3.

Accommodation to be provided.	Maximum Price.
Lodging and attendance for soldier where meals furnished.	Sixpence per night.
Breakfast as specified in Part I. of the Second Schedule to the Army Act.	Fourpence each.
Dinner as so specified - - - - -	Elevenpence halfpenny each.
Supper as so specified - - - - -	Twopence halfpenny each.
Where no meals furnished, lodging and attendance, and candles, vinegar, salt, and the use of fire, and the necessary utensils for dressing and eating his meat.	Sixpence per day.
Stable room and ten pounds of oats, twelve pounds of hay, and eight pounds of straw per day for each horse.	One shilling and ninepence per day.
Lodging and attendance for officer - - -	Two shillings per night.

Note.—An officer shall pay for his food.

SECOND SCHEDULE.

Section 4.

PART I.

PROVISIONS CONFERRING AND IMPOSING POWERS AND DUTIES ON SECRETARY OF STATE TRANSFERRED TO THE ARMY COUNCIL.

Sections 77, 78, 79, 80, 82, 84, 86, 87, 88, 91, 92, 93, 94, 100, 106, 111, 113, 115 except subsection (1), 118, 119, 137, 138 (8), 139, 140 (1), 142, 145, 154, 156 (1), 161, 162, 167 (1), 173, 175 (7), 179 (12).

PART II.

AMENDMENTS OF ARMY ACT CONSEQUENTIAL ON TRANSFER OF POWERS TO ARMY COUNCIL.

Provision of Army Act modified.	Modification to be made.
Sections 77, 78, 79, 80, 82, 84, 86, 87, 88, 91, 92, 93, 94, 100, 106, 111, 113, 115 (3) (4) (6), 118, 119 (1) and (2), 137 (4), 138 (8), 139, 140 (1), 142, 145 (2), 154 (5) (7) and (8), 156 (1), 161, 162 (4), 173, 175 (7), 179 (12).	For the words "a Secretary of State," "the Secretary of State," and "such Secretary of State," wherever those words respectively occur, there shall be substituted the words "The Army Council."

Provision of Army Act modified.	Modification to be made.
Section 137 (1) - -	For the words "notified as satisfactory by the " Commander-in-Chief to a Secretary of " State " there shall be substituted the words "approved by the Army Council."
Section 163 (1) (b) and (c) -	After the words "a Secretary of State," wherever they occur, there shall be inserted the words "or the Army Council."
Section 167 - -	For the words "a Secretary of State or the " Commander-in-Chief " there shall be substituted the words "the Army Council."
Section 179 (6) - -	After the words "Secretary of State" there shall be inserted the words "and the Army " Council."
Sections 42, 57 (2) (a), 75, 103, 163 (1) (e).	For the words "the Commander-in-Chief," and "Commander-in-Chief," wherever those words respectively occur, there shall be substituted the words "the Army Council."
Sections 59 (4) and (5), 64 (2) (3) and (4), and (67) (4) (a).	For the word "officers" there shall be substituted the word "authorities," and for the words "the Commander-in-Chief, the " Adjutant-General " there shall be substituted the words "the Army Council."
Section 73 (3) - -	For the words "the Commander-in-Chief or " Adjutant-General " and the words "the " Commander-in-Chief " where they lastly occur, there shall be substituted the words "the Army Council."
Section 101 - -	For the words "the Commander-in-Chief or " the Adjutant-General " there shall be substituted the words "the Army Council."
Section 122 (6) - -	The words "the Commander-in-Chief and " shall be omitted.
Section 172 (1) - -	For the words "the Commander-in-Chief or " the Adjutant-General " there shall be substituted the words "the Army Council," and after the words "on behalf of " there shall be inserted the words "the Army " Council or "
Section 179 (7) - -	For the words "The Commander-in-Chief, " Adjutant-General," there shall be substituted the words "the Army Council" and for the words "Commander-in-Chief, " Adjutant-General," there shall be substituted the words "Army Council."
Section 183 (2) and proviso (b)	For the words "the Commander-in-Chief " where they firstly occur in each of those provisions there shall be substituted the words "the Army Council."

Where, in consequence of the substitution of the Army Council for the Secretary of State or the Commander-in-Chief under the foregoing provisions of this Schedule, it is necessary to substitute words in the plural for words in the singular, such substitution shall be made.